



POLICE DEPARTMENT

November 24, 2010

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Jason Soto
Tax Registry No. 933377
47 Precinct
Disciplinary Case No. 82355/06

The above-named member of the Department appeared before me on April 6, May 7, and June 15, 2010, charged with the following:

1. Said Police Officer Jason Soto, assigned to the 47th Precinct, while off-duty, at or about 0320 hours, on or about October 11, 2006, within or about the confines of the 24th Precinct, in New York County, did wrongfully operate a motor vehicle while intoxicated.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT
NYS VTL Section 1192 (3) – OPERATING A MOTOR VEHICLE UNDER
THE INFLUENCE OF ALCOHOL

2. Said Police Officer Jason Soto, assigned to the 47th Precinct, at the date, time and location indicated in Specification #1, while off-duty, did wrongfully operate a motor vehicle while his ability was impaired by an intoxicant.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT
NYS VTL Section 1192 (1) – OPERATING A MOTOR VEHICLE UNDER
THE INFLUENCE OF ALCOHOL

3. Said Police Officer Jason Soto, assigned to the 47th Precinct, at the date, time and location indicated in Specification #1, while off-duty, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Officer refused to submit to a Breathalyzer and coordination examination.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

COURTESY • PROFESSIONALISM • RESPECT

4 Said Police Officer Jason Soto, assigned to the 47th Precinct, while off-duty, at the date, time and location indicated in Specification #1, did consume an intoxicant to the extent that said Officer was unfit for duty

P G 203-04, Page 1, Paragraph 2 – FITNESS FOR DUTY

5 Said Police Officer Jason Soto, assigned to the 47th Precinct, while off-duty at the date, time and location indicated in Specification #1, did consume an intoxicant to the extent that said Officer was unfit for duty, while armed

P G 203-04, Page 1, Additional Data – FITNESS FOR DUTY

6 Said Police Officer Jason Soto, assigned to the 47th Precinct, while off-duty, at the date, time and location indicated in Specification #1, failed to carry his shield at all times, as required

P G 204-15, Page 1, Paragraph 3 – UNIFORMS AND EQUIPMENT

The Department was represented by Amy Avila, Esq , Department Advocate's Office, and Respondent was represented by John Tynan, Esq

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review

DECISION

Respondent is found Not Guilty of Specification No. 1 and Guilty of Specification Nos. 2 through 6

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Police Officer Michael Wilson, Sergeant Michael Acevedo, and Police Officer William Wilson as witnesses and submitted the out-of-court

statement of Captain Robert Hacker ¹

Police Officer Michael Wilson

M Wilson is a 14-year member of the Department currently assigned to the Applicant Processing Division where he has been for a little over two years. He had previously been assigned to the 24 Precinct as a patrol officer for eight years. M Wilson explained that the 24 Precinct covers from West 86 Street to 110 Street, Central Park West to Riverside Drive.

M Wilson stated that on October 11, 2006, he was working as the duty captain's driver and was operating an unmarked motor vehicle in the early hours of that morning. The duty captain, Captain Robert Hacker, was in the passenger's seat. He remembered that they were at 86 Street and Broadway in Manhattan at around 3:00 a.m. While stopped at a red light he recalled noticing a car next to them playing loud music, which Hacker instructed him to observe. M Wilson stated that he watched the car speed off "pretty quickly" when the light turned green, though he did not know the exact speed. He then followed the car, as it went past West End Avenue to Riverside Drive and made a right turn on a red light. There were no signs posted that permitted such action. M Wilson explained that they pulled the car over after it made that right turn at the red light, and he approached the car on the driver's side. When asked if he "g[ot] a look at the driver of the vehicle," M Wilson agreed and pointed Respondent out as the driver. There were three other passengers in the car, a female in the passenger's seat and two men in the back seat, though at the time he did not know who they were.

M Wilson recounted that he asked Respondent for his driver's license,

¹ Captain Hacker passed away shortly after this incident.

registration and proof of insurance, which Respondent provided. When Respondent was about to show him his Department ID, Hacker asked to see it. At that point, Hacker asked Respondent to step out of the vehicle, brought him to the sidewalk, and had a conversation with him for approximately ten to 15 minutes standing face-to-face, about a foot or two apart. M. Wilson testified that he was unable to hear what was said during that conversation, but found out at that time that Respondent was armed as M. Wilson saw Hacker remove Respondent's weapon. Hacker called the patrol supervisor to respond, and he was instructed to arrest Respondent. Hacker placed Respondent in the unmarked vehicle he and M. Wilson had arrived in. M. Wilson said that when Respondent was being placed in the vehicle, he noticed that the front of his blue jeans were wet down to his knees, which M. Wilson thought was a result of Respondent urinating in his pants, but he never vouchered or otherwise documented the pants in any way.

M. Wilson explained that he then also got back into the vehicle and recalled smelling alcohol, and testified that he did not smell anything like that prior to Respondent being placed in the car. M. Wilson then drove Respondent and Hacker to the 28 Precinct, which is the designated precinct for arrests made for driving while intoxicated, as they administer tests to determine intoxication or impairment there. He said, however, that he was not present during Respondent's testing and after driving him to the 28 Precinct and escorting him to the second floor, he had no other contact with Respondent.

During cross-examination, M. Wilson agreed that he never made any note in "the paperwork" or his memo book about the possible "urine-soaked pants," and stated that he would not have put it in the arrest paperwork as he did not prepare that. He then admitted

that he was interviewed pursuant to Patrol Guide Section 206-13 regarding the interrogation of members of the service and that he was questioned about the arrest of Respondent. He did not remember whether or not he told Internal Affairs investigators about the "urine-soaked pants," but said that the transcript of that interview would allow him to respond definitively. After being shown, and reading, a portion of that transcript, M. Wilson affirmed that he did not tell the investigators about the pants even after he was asked if he had any further information that may help in the investigation. He ultimately agreed that the first time the pants were ever mentioned was at Respondent's criminal trial in September 2008.

M. Wilson affirmed that on the day of Respondent's arrest, he approached the car on the driver's side, while Hacker was on the passenger side. He did not ask Respondent to exit the car, and then stepped back to the rear door because Hacker asked Respondent to step out of the vehicle and M. Wilson wanted to get out of the way of the swing of the door. Respondent complied with Hacker's request for his identification, and though Respondent did not offer the information that he was a police officer, M. Wilson believed the police ID spoke for itself.

M. Wilson admitted that the only thing he said to Respondent at the scene was asking him for his driver's license, registration and insurance card, so in general there was no conversation had between the two. When Respondent removed his ID to show it to M. Wilson, Hacker reached over and asked to see it, and from then on Hacker had taken control of the situation. As such, M. Wilson admitted that the only time he saw Respondent talking was with Hacker, both inside the car and outside the car, but he was never a participant in the conversation. He said that he saw Respondent step out of the

car, asserted that he had no trouble doing so, and agreed that Respondent was steady on his feet. M. Wilson denied the presence of any beer cans or bottles in the car and stated that he had no involvement in vouchering the vehicle. He admitted that there was no other evidence that Respondent had been drinking other than the smell of alcohol when he was put into the unmarked vehicle with M. Wilson and Hacker, and that there was nothing that indicated that he was intoxicated or impaired.

Upon questioning by the Court, M. Wilson stated that a female officer was placed in the back of the unmarked vehicle at the time that Respondent was put in. However, he did not have any conversation with her, and he drove the car to the station house with Hacker in the front passenger seat.

Sergeant Michael Acevedo

Acevedo is an 18-year member of the Department assigned to Group 22 of the Internal Affairs Bureau for the past eight years. His duties as a sergeant with Group 22 include investigation of allegations of corruption and serious misconduct made against members of the Department. He said he was assigned as the original investigator to Respondent's case in October 2008 where his duties in the investigation were to collect pertinent documentation as well as conduct some interviews, specifically those of M. Wilson and Police Officer William Wilson (W. Wilson). He testified that the allegations in this case were substantiated.

Acevedo testified that he was familiar with Hacker, who died shortly after this incident. He stated that he had not had the opportunity to speak with Hacker, but had been able to review, and was familiar with, the "UF-49" prepared by Hacker for this case.

[Department's Exhibit (DX) 1] Acevedo defined the UF-49 as a document "prepared to delineate the details of an incident a Departmental record " He stated that the document was dated October 11, 2006, it was signed by Hacker, and that he received it pursuant to the investigation. Acevedo then read the third paragraph of the document, describing Hacker and M Wilson's observations during the incident

[This portion of DX 1 is consistent with M Wilson's testimony, with the following additional information

Hacker wrote that Respondent's front seat passenger, subsequently identified as Police Officer Mara V Claudia,² had her arms out of the sunroof window, moving them to the loud music When the light they were stopped at turned green, Respondent "stomped on the vehicle's accelerator, quickly reaching an unsafe speed and changed to the left lane Having oversteered, he had to turn right again to stay in the left lane "

At Riverside Drive and 109 Street, Respondent's vehicle was pulled over, and upon approaching the vehicle's passenger side door, Hacker observed the window rolled down and a strong odor of alcohol was emanating from the vehicle He saw Respondent appearing to display an ID to M Wilson and he asked him if he was a police officer Respondent replied, "Yes "

After directing him out of the vehicle, Hacker smelled a "strong odor of alcohol" on Respondent's breath When asked by Hacker if he was drinking, Respondent stated that it was his birthday, that he and his passengers were celebrating at a bar called Brother Jimmy's, and that he had a couple of drinks

Hacker found Respondent to be unfit for duty "[d]ue to a slight but noticeable

² The correct spelling of her name is actually "Claudia Mera."

unsteadiness on his feet, his glassy and bloodshot eyes, the strong odor of alcohol on his breath and his unsafe overly fast driving " He also found Respondent to be armed with his off-duty firearm but not his shield, which was later retrieved from his locker]

Acevedo reiterated that he had never spoken to Hacker, but that he believed the UF-49 was prepared the night of the incident After that, Hacker had again spoken to another member of the Department during his official interview (DX 2 and 2A are the tape and transcript, respectively, of Hacker's interview) Acevedo said that he did not know if Hacker was represented by counsel when he was interviewed, but that he would have been told that he had to tell the truth during his testimony. He identified DX 2 as the tape he had listened to the day before and, upon inspection, DX 2A an accurate transcript of that tape, though he pointed out that he was not at the interview

During cross-examination, Acevedo admitted that he had never met Hacker, and had not had any contact with Respondent on the night of his arrest He also acknowledged that he testified at the criminal trial that arose from this situation, which he knew was ultimately dismissed

Police Officer William Wilson

W Wilson has been a member of the Department for 16 years He is assigned to the Highway District Investigation Squad, where he has worked for approximately one year Prior to his current assignment, W Wilson was assigned to Highway One for approximately six years, where his duties were to "patrol highways, keep the highways open, investigate accidents," and administer breath analysis tests on those suspected of

drinking and driving. He was trained to be a "breath analysis operator" and explained that the Intoxilyzer 5000 is a machine that takes a sample of a subject's air from the lungs and turns it into a blood alcohol content level. When operating the machine, W. Wilson stated, he asks the person to take a deep breath, hold it, and blow into a tube, which is then filtered and converted from air to a blood alcohol content level.

W. Wilson testified that on October 11, 2006, he administered a breath analysis test to Respondent using the Intoxilyzer 5000 in the IDTU³ room of the 28 Precinct. He stated that he gave Respondent the usual written warnings that are given to a person involved with such a test, in the presence of several people. In regards to the test, W. Wilson prepared an Intoxicated Driver Examination Instruction Sheet (DX 3) which detailed his name and shield, the subject tested that night, the time (later stated to be 5:23 a.m.) and location that the test was administered, his partner's information, and "a result of the questions that I asked that night." W. Wilson recounted that he told Respondent, "I would like you to take a breath test. Will you take this test?" W. Wilson said that Respondent refused to take the test, so he stated the following to Respondent, as per the examination instruction sheet:

If you refuse to submit to a test, or any portion thereof, it will result in the immediate suspension and subsequent revocation of your driver's license or operating privileges, whether or not you're found guilty of the charges for which you have been arrested. In addition, your refusal to submit to a test, or portion thereof, can be introduced as evidence against you at any trial proceeding or hearing resulting from the arrest. I will ask you again, will you take a breath test, yes or no?"

W. Wilson said that Respondent again refused the test, so he then offered Respondent the opportunity to take the "Physical Coordination Test," which is a battery

³ Intoxicated Driver Testing Unit

of tests including a "walk-and-turn test," a "one-legged-stand test," and a "finger-to-nose test," to test coordination in order to determine intoxication and/or impairment

Respondent also refused to take these tests W Wilson testified that Respondent never claimed to have had any injuries or physical conditions to justify his refusal to take these Physical Coordination exams

W Wilson testified that he observed Respondent for 40 minutes that night, which is routine procedure done to ensure that the person does not take part in any behaviors that might lead to a false test, including chewing gum, vomiting, hiccupping, or burping Generally this observation only lasts 20 minutes, but the time was extended for Respondent as he was seen chewing gum by Sergeant DeFrancesco W Wilson did not know where the gum came from He then explained that chewing gum, and the other prohibited activities, can give a false reading to the test by giving a "mouth reading" not the "deep lung air sample" that is sought. He also stated that the false reading could be either positive or negative W Wilson said that when the Intoxilyzer 5000 test was offered to Respondent, there were steps of preparation taken, which were documented W Wilson testified that he prepared an Arresting Officer's Report-IDTU (DX 4) for every DWI (driving while intoxicated) arrest, and said that he filled out the very top part and bottom half of the document, a process that is done before the test is given to the subject while the "machine is doing the checks "

He testified that the machine was in good working order during the early morning of October 11, that the Arresting Officer's Report-IDTU (DX 4) is kept in the regular course of police business, and that he is under a business duty to be accurate in his preparation of that document and the contents that go into it W Wilson stated that on

the date in question, the Intoxilyzer was already turned on, which is why the box on DX 4 regarding test preparation was checked. He stated that the subject was observed for 20 minutes and then "we basically put the subject's pedigree information into the machine [and] make sure that's at the right temperature."

Upon determining that the machine was at the required 34 degrees, W. Wilson said that he asked Respondent if he wanted to be tested and that at 5:25 a.m. (over an hour after the 4:11 a.m. arrest) Respondent refused. Due to the refusal, W. Wilson prepared a Department of Motor Vehicles form, Report of Refusal to Submit to Chemical Test (DX 5), and filled out the portion of the form that documented the refusal of the breath test, W. Wilson's information, where the test was offered, the time, and pedigree information.

W. Wilson testified that the events that occurred in the IDTU room in the 28 Precinct, during the morning of October 11, 2006, were recorded on video (DX 6). The Court was shown a portion of the 40-minute video while W. Wilson explained the things that went on in the video. He identified himself, two union delegates that he could not identify by name or command, and Respondent. He also pointed out DeFrancesco, who had noticed that Respondent was chewing gum, Lieutenant Seamus Lavin, "who was assigned to take the collar that night," Lieutenant Granville, who was W. Wilson's supervisor, someone from Inspections or IAB, and Hacker. He also noted the moment in the video when Respondent put his gum "away."

W. Wilson also identified Granville reading Respondent his Miranda warnings, and Respondent refusing to answer questions. W. Wilson then explained the layout of the room and the utility of a stripe down the center of the room where the "Coordination

Examination takes place "

W Wilson testified that on the day in question he heard Hacker saying to "a lot of people that night" that he was "looking to make a DWI arrest and [he (Hacker)] made one " He stated that he did not ask Hacker what he meant by that statement, nor did Hacker ever explain his meaning, so he cannot be entirely sure what was meant

During cross-examination, W Wilson stated that, in his opinion, Hacker's comment meant that "he didn't care who he found that night, he was out to make a DWI arrest " He then said that he first came into contact with Respondent in the IDTU room of the 28 Precinct and that 30 to 45 minutes had passed from Respondent's arrest to that first contact, adding that, by October 11, 2006, he had been involved with approximately 500 DWI arrests in his career W Wilson then agreed that he had an opportunity to speak with Respondent when he was in the IDTU room, and that Respondent smelled "faintly" of alcohol, but was not "unsteady" on his feet, and was "coherent" and able to follow his commands when he first came into contact with him He also disputed the fact that Respondent had "watery and bloodshot eyes" at that point, denying that, overall, there was no indication of any telltale signs of intoxication before W Wilson asked Respondent to take the Intoxilyzer test and when the two spoke

W Wilson agreed that in his position he often evaluates a person's level of intoxication based on his observations and that he had such an opportunity regarding Respondent at the time in question He stated that, at that time, he felt that Respondent was under the influence of alcohol but not to the extent that his ability to drive was affected, nor did he feel Respondent was unfit for duty

During redirect examination, W Wilson stated that he was not present during the

arrest, and thus not there when Respondent was pulled over. He knew the arrest occurred at 4:11 a.m., but could not say the actual time when the car was stopped. He did, however, agree that as the refusal occurred at 5:25 a.m., which was over an hour after the arrest, *even more time had elapsed from the time the car was pulled over.* W. Wilson said that he did not see what Hacker saw, and admitted that an impaired person may not necessarily be so drunk that he is falling down, reeking of alcohol, or displaying bloodshot or watery eyes hours after being pulled over. He also agreed that a person with a blood alcohol content (BAC) of .08 might not show any signs of intoxication. He concurred that there is a difference between someone with a .08 BAC and a person with a .16 BAC, adding that the effects that those levels of intoxication have on an individual vary.

On recross-examination, W. Wilson admitted that his first contact with Respondent was approximately 40 minutes prior to the 5:25 a.m. refusal to take the breath test. He agreed that the indicia of intoxication used to evaluate intoxication includes both physical and verbal actions, and that he has made those determinations hundreds of times. He stated that he used all those methods in making a determination regarding Respondent and that he felt Respondent was neither intoxicated nor impaired to the level that he would be unable to operate a motor vehicle. W. Wilson agreed that Respondent was in the IDTU room with delegates from his union and as such had opportunity to discuss his options regarding what course of action would be best for him with those delegates.

Upon questioning by the Court, W. Wilson stated that in the 40 minutes prior to the Intoxilyzer test refusal, he looked for the signs of intoxication or impairment when he

first saw Respondent, and did not see any

During redirect examination, he stated that though he did not see the signs of intoxication or impairment, he said that he could tell that Respondent had "a few drinks that night," but again insisted that the ability to operate a motor vehicle or to be fit for duty was not impaired

Out-of-Court Statement of Captain Robert Hacker

Hacker said that on the night in question he was assigned to Manhattan North, doing a tour from 11 00 p.m to 7 00 a.m , working with a driver in an unmarked vehicle. At 3 20 a.m he was stopped at a red light on 86 Street at the westbound intersection with Broadway when he noticed that the vehicle next to him on the right had loud music playing and the passengers were "a little loud and boisterous ". Once the light turned green, the car sped off, changed into his lane, and made a right turn at a red light onto Riverside Drive. Hacker told his driver to follow the car, which he pulled over on Riverside Drive at approximately 109 Street. He approached the passenger's side while his driver approached the driver's side of the stopped vehicle, at which point, Hacker said, he "smelled a lot of alcohol" emanating from the open windows.

Hacker said that he saw Respondent showing something in his wallet, which he assumed was a shield, to Hacker's driver, at which point Hacker told Respondent, "you got pulled over by a New York City Captain" because of his manner of driving and the "immediate strong smell of alcohol ". Hacker explained that Respondent then approached him and seemed "a little nervous and agitated" and that his breath smelled of alcohol, later adding that he exited the vehicle "slowly and very deliberately talking ". When he

asked Respondent "what is he drinking," Hacker said that Respondent told him that he was celebrating his birthday and had "had a few drinks " He had later found out that Respondent and his passengers were at Brother Jimmy's, a bar and restaurant on 92 Street, but he did not know when they got there or when they left He only knew that Respondent stated that he only drank a couple of drinks, but admitted that he did not know an exact number or what type of alcohol Respondent drank

Hacker stated that, based on Respondent's "physical appearance," he felt that he was not fit for duty at that time Upon finding out that Respondent was armed, Hacker removed the firearm from Respondent's person and placed him under arrest Respondent was not in possession of his shield and identified himself with his Department ID

Hacker denied seeing alcohol or receipts for alcohol in the car or on Respondent's person He explained that he found out that there was another officer in the car, Mera, who had her Department ID card but was not in possession of her shield or firearm In his opinion, she was fit for duty even though she had drank The two other passengers, sitting in the backseat, were Respondent's brother, [REDACTED] and a family friend, [REDACTED]

Hacker said he determined Respondent was intoxicated based on the lane change at "a very high rate of speed," the right turn on red and the "unsafe rate of speed" Respondent was driving He said he observed Respondent as having watery eyes and not being able to stand perfectly straight or still He was not "swaying, but there was some movement, left and right movement it seemed like he was attempting to keep his composure " His speech was not slurred

Hacker said that Respondent was cooperative, but concerned about the fact that he

had been drinking. He also stated that Mera was cooperative, and maintained that the two of them were sober.

Respondent's Case

Respondent testified in his own behalf.

Respondent

Respondent was appointed to the Department in July 2003 and was assigned to the 47 Precinct, which covers Woodlawn as well as the neighborhoods encompassing East 233rd Street, White Plains and Boston Roads in the Bronx. He is still assigned to the 47 Precinct as a full duty crime analysis officer. He testified that on October 11, 2006 he was celebrating his birthday, which was the day before. He spent the night of October 10, 2006 having dinner with his mother and girlfriend in the Bronx, but did not drink there. He then drove his 2006 Volkswagen Passat to pick up his brother and a family friend in Manhattan and went to Brother Jimmy's (a barbeque restaurant) on Third Avenue at around midnight and stayed for about "an hour or two." He testified that he had two beers while at Brother Jimmy's and left at around 2:00 a.m. to go home. He stated that he drove across town to Riverside Drive, and his girlfriend, brother and friend Jerry were in the car with him. He did not recall what route he took to get across town nor the speed he was driving.

Respondent testified that on Riverside Drive at around 118 Street, he saw a marked RMP (radio motor patrol vehicle) with flashing lights and he immediately pulled over and rolled down his windows. The uniformed driver of the vehicle that pulled him

over walked up to his window, but did not say anything. Respondent stated that he did not attempt to get out of the car, but showed the officer his Department ID, at which time, Hacker, standing at the passenger's side, said, "That's not gonna do you any good, I'm a Captain " Respondent testified that he did not respond to Hacker, who then asked if anyone else in the car was a police officer and his girlfriend, Mera, responded Respondent said that Hacker then asked for his and Mera's police IDs, and his brother's and friend Jerry's driver's licenses, which they all gave to Hacker

Respondent stated that at that point, Hacker stepped away for about ten minutes and then had Mera step out of the vehicle and spoke to her on the passenger's side of the car Respondent testified that while this was happening he was in the driver's seat with the engine "probably" off, but did not step out of the vehicle until Hacker asked Mera to ask him to He could not recall any other members of the service being present at this time, or the location of the uniformed member who initially approached his window, and stated that he did not have any conversation with that member nor Hacker during the ten minute period After Mera asked him to step out of the car, Respondent walked to where Hacker was standing, by the passenger's side on a grassy portion of the park near Riverside Drive, in what he describes as a "regular" gait Respondent recalled Hacker asking if he was armed, which he responded affirmatively Then Hacker asked Respondent to turn over his firearm, which he allowed Hacker to remove from his person Hacker then told Respondent to sit back in his vehicle Another RMP arrived and the officers spoke behind Respondent's vehicle

Hacker placed Respondent under arrest for being under the influence of alcohol and took him to the 28 Precinct Respondent then testified that he did not have the

chance to speak to anyone before the case processing began, and he did not speak to anyone for about 15 minutes after he arrived at the precinct. Respondent testified that he ultimately spoke to union delegates though he could not recall the content of their conversation. He was informed that he would be administered a Breathalyzer test, but he was not informed by officers or delegates as to what his responsibilities or duties were in taking that test. Respondent said, however, that approximately half an hour (or longer) before he was asked to take the test, senior officers told him not to take the test without giving any reason he should not. He also did not ask for reasons why he should not take the Breathalyzer test.

Respondent stated that he did not have his shield with him at the time of the arrest because he left it on his uniform in his locker, which is his normal practice. He said that he does not carry a duplicate shield because he thinks it is against regulations to do so. Respondent explained that he pleaded Not Guilty during his first appearance in court, and that he was found to be Not Guilty of any charges after a trial that he did not testify at. The District Attorney's office had charged him with driving while intoxicated and driving under the influence. He said that at the time of his arrest he did not feel as though he was intoxicated nor did he believe his ability to drive was impaired by the two beers he drank. However, he testified that Hacker determined that he was unfit for duty, but Respondent believed that he was "definitely fit."

During cross-examination, Respondent admitted that he went to Brother Jimmy's to celebrate his birthday and was driving home afterwards. He also explained that although he was with his mother earlier in the evening, when he decided to go to Brother Jimmy's she stayed home. He agreed that due to the joyous occasion, he wanted to enjoy

the evening Respondent could not remember exactly where the restaurant was located on the Upper East Side, but acknowledged that it is not very far from the Upper West Side To the best of his recollection, he arrived at the restaurant around midnight and left around 2 30 a m or 3 00 a.m Respondent stated that he did not have his first drink the moment he arrived at Brother Jimmy's, and that he smoked a cigarette outside first, but when he entered the bar his brother had bought him a beer to treat him for his birthday He also stated that he did not eat anything at the restaurant in the few hours he was there

Once he left Brother Jimmy's, Respondent agreed that he sat in the driver's seat of his car He clarified that Mera, who was in the passenger's seat, is not now, but was his girlfriend at the time, and acknowledged her position as a member of the service He admitted that his brother and friend were in the backseat, and that he was the one who was driving as they were intoxicated from having been drinking "quite a bit" since before he arrived at Brother Jimmy's When asked if he had loud music playing, Respondent first agreed that there was music but contended that he did not consider it loud, though when he was confronted with his response to this question at his official Department interview, he agreed that he had previously stated that the music was loud

Respondent stated that he could not remember if traffic was light or heavy when he left Brother Jimmy's at around 3 00 a m on the date in question, whether he went through or around Central Park to get to the west side, nor could he remember what time he was pulled over He did admit that the car that pulled him over was unmarked, and that he was on duty that night, but was not carrying his shield He disputed the fact that he had ever spoken to M Wilson, stating that he was just the first one to approach his side of the vehicle He stated that about ten minutes after pulling over, he stepped out of

the car and spoke privately with Hacker on a grassy area on the side of the road for about five minutes before he got back into his own car. After that, he waited for ten more minutes before being arrested and put in the back of the unmarked car with Mera. Respondent denied urinating in his pants at any time. He then admitted that he was immediately taken to a precinct, though he was not sure which one due to his lack of familiarity with the Manhattan precincts, to have his BAC tested. Only after watching the tape of the events that unfolded at the 28 Precinct, Respondent admitted to having chewed gum while there, but did not know if the gum was given to him or if it was his. He also denied knowing when he started chewing the gum.

Respondent stated that he had been a member of the service for about three years on the date in question, and he had met people who were involved with DWI cases in that time. He agreed that he was given the opportunity to cooperate with the investigation at the 28 Precinct, by being offered the Intoxilyzer test, which he refused. He acknowledged that the process of blowing into a tube was not difficult for him, and that he had no physical malady that would prevent him from being able to do so. He also stated that at the time he was made aware that not taking the test would result in his driver's license, [which is required for all members of the service], being automatically suspended, yet he refused the test a second time. From the time of his arrest to the time he was offered the opportunity to take the Intoxilyzer test to validate his claim that he was not intoxicated, Respondent agreed that a few hours had passed. He agreed that he was "definitely not intoxicated," and yet, still refused the opportunity to prove that he was not and thus establish innocence of the charges against him by taking the breath test. He disputed that had he submitted to the test and proven his innocence, he would have

been sent home because he felt that if a member of the service is involved with a police incident he would have to be interviewed before being sent home. He did agree, however, that had he been able to prove his claim, he would have avoided being arrested and having his driver's license suspended.

Respondent clarified that while there were union delegates present when he was at the 28 Precinct, they were not specifically his union delegates as they were not from his precinct, but agreed that they were there to protect his rights. He acknowledged that the Breathalyzer test is relied upon by the Department in investigations similar to this one, in order to assess intoxication levels or impairment. Respondent agreed that as a member of the service, he is expected to cooperate with investigations. He also agreed that while he was offered the opportunity to take the Physical Coordination Examination, he again refused to do so, and admitted having no physical conditions or injuries that would prevent him from doing so. He then reiterated that he refused the tests due to the fact that his union delegate had suggested not to, thus he was just listening to the senior officers. He admitted the senior police officers were not with him at Brother Jimmy's and had no idea how much he drank that evening. He did agree that he knew how much he drank, but that he could not be sure if anyone else in the car was aware of the number of drinks he consumed. He also acknowledged that all three of his passengers were interviewed but did not testify at his criminal trial.

Upon questioning by the Court, Respondent explained that he and Mera were in the same Police Academy class and she is still a member of the service. He also stated that he was the driver of the car, in effect the designated driver, with his then-girlfriend, his brother, and his friend [REDACTED] as his passengers. He stated that his brother had not

driven himself to the bar, and that his intention was to drive the group back to the Bronx, where he lives

FINDINGS AND ANALYSIS

Specification No 1

Respondent stands charged with wrongfully operating a motor vehicle while intoxicated and off-duty on October 11, 2006 at about 3 20 a m The only evidence of this is the hearsay statement of Captain Robert Hacker who stated in an official *Department interview that he had his driver stop Respondent's vehicle* When Respondent approached him after exiting his vehicle he smelled of alcohol He further stated that Respondent had watery eyes and was not able to stand perfectly straight or still He denied that Respondent had slurred speech When asked what were the factors that made him decide that Respondent was unfit for duty he stated that it was Respondent's reckless driving, i e , speeding and the fact that he made a right turn on a red light where he was not authorized to do so Hacker did not further allege that Respondent drove erratically or swerved his car as he operated it

The problem with this account by Hacker is that it is insufficient, in and of itself to establish intoxication by Respondent Hacker does not describe several physical indicia of intoxication such as Respondent being wobbly on his feet, having slurred speech, etc Nor does Hacker's driver, Police Officer Michael Wilson (M Wilson), support this account M Wilson testified that he stopped Respondent's vehicle and asked him for his license, registration and insurance Respondent provided the documents to him M Wilson did not testify that he smelled alcohol emanating from Respondent at

that time He noted that as Respondent attempted to provide him with his Department ID, Hacker reached over, took the ID and took control of the situation Hacker asked Respondent to step out of the vehicle M Wilson then moved to the back of the vehicle and Respondent and Hacker then had a ten to 15-minute conversation that M Wilson was not privy to

M Wilson noted that he saw no evidence that Respondent was intoxicated or impaired He observed that as Respondent stepped out of the vehicle, he had no problem exiting the vehicle and was steady on his feet M Wilson said there were no beer cans or beer bottles in the car and the only time he smelled alcohol was when he placed Respondent in his unmarked car M Wilson noted, however, that one of Respondent's passengers was also in the unmarked vehicle at the time Respondent was placed in there and M Wilson smelled alcohol Thus the smell of alcohol could have been emanating from Respondent's girlfriend, Mera, another member of the service who was also placed in the unmarked car

It must also be noted that Police Officer William Wilson (W Wilson) who worked in Highway for over six years and who conducted well over 1,000 DWI stops testified that Respondent appeared to have consumed a couple of beers, but was not impaired to the point that he could not operate a motor vehicle He testified in Court that Respondent did not have bloodshot eyes, stagger in his step, slurred speech or any other indicia of being intoxicated In fact, once at the 28 Precinct, he offered to administer the breath analysis test to him He spent over 40 minutes making observations of the Respondent that night He explained that he routinely makes observations for 20 minutes, but when Respondent was observed chewing gum by a sergeant, which can

result in a false breath analysis reading, W Wilson stated that his observation of Respondent was extended by another 20 minutes

In addition, W Wilson posed questions to Respondent in relation to administering the test so he stood in close proximity to him W Wilson also testified that he heard Hacker state to several people during the tour that he was "looking to make a DWI arrest and [he] made one " W Wilson explained that he never asked Hacker what he meant by the statement, but he interpreted his statement to mean that he did not care who he found that night, he was out to make a DWI arrest Given the fact that Hacker did not testify at this proceeding, that his only observations were the smell of alcohol and watery eyes, and that he based his unfit for duty determination on the rate of speed that Respondent drove and that Respondent made a right turn on a red light, these factors, in and of themselves, without corroboration from other members of the service or the results of an Intoxilyzer test, are insufficient to establish that Respondent was intoxicated on the incident date

The standard to prove intoxication is a high one Absent a breath analysis test reading of .08 or higher, several physical indicia of intoxication needs to be present, i e , unsteadiness on the feet, slurred speech, bloodshot and watery eyes Hacker did not note all of these indicia and neither did M Wilson or W Wilson

Accordingly, I find Respondent Not Guilty of Specification No 1

Specification Nos 2, 4 and 5

Respondent stands charged herein with wrongfully operating a motor vehicle while his ability was impaired by an intoxicant to the extent that he was unfit for duty while armed and off-duty on the same date, time and location indicated in Specification

No 1 Respondent is found Guilty as charged Evidence adduced at trial established that Hacker observed a vehicle next to him while he was stopped at a red light The music was loud in the vehicle and Hacker instructed his driver to follow the vehicle When the light turned green, the car sped off, changed into his lane and then made a right turn on a red light where there was no authority to make such a turn M Wilson corroborated this account He stated that when the light turned green, the car sped off "pretty quickly" and made a right on red where there were no signs posted which permitted such action

Once stopped, Hacker said he smelled alcohol on Respondent's breath As Respondent approached him he said that Respondent walked "slowly" Hacker stated that as he spoke to Respondent, Respondent admitted that he was celebrating his birthday and that he "had a few drinks" Hacker said Respondent had watery eyes and did not have the ability to stand perfectly straight or still Hacker then made the decision that Respondent was unfit for duty and removed his firearm and had him placed under arrest W Wilson did not agree with this assessment of Respondent He stated that when he had contact with Respondent some 30 to 45 minutes after his arrest back at the station house, Respondent had a "faint" smell of alcohol He was not unsteady on his feet, was coherent, able to follow his commands and did not have watery or bloodshot eyes W Wilson thought Respondent was not intoxicated or impaired to the extent that he could not operate a motor vehicle

It must be noted that W Wilson made his observations of Respondent almost an hour after Hacker, back at the station house W Wilson could not testify about observations made of Respondent while on the street because he was not present While the smell of alcohol was "faint" when W Wilson came in contact with Respondent at the

station house, such was not the case when Hacker observed Respondent on the street. Hacker, a police captain and supervisor of the Department, made the determination that Respondent was not fit for duty at that time, that his firearm needed to be removed, and that he needed to be placed under arrest. Hacker simultaneously made the decision that another member of the service who was in the vehicle with Respondent, Mera, was fit for duty even though she had consumed some alcohol.

Accordingly, based on Hacker's assessment of Respondent that he was impaired due to the consumption of alcohol and therefore unfit for duty while armed, I find Respondent Guilty of Specification Nos. 2, 4 and 5.

Specification No. 3

Respondent stands charged with engaging in conduct prejudicial to the good order, efficiency and discipline of the Department in that said Officer refused to submit to a Breathalyzer and coordination examination while off-duty on the same date, time and location indicated in Specification No. 1. Respondent is found Guilty as charged. Evidence adduced at trial established that M. Wilson transported Respondent to the 28 Precinct, the designated precinct for arrests for DWI where tests to determine intoxication or impairment are performed. W. Wilson, who was assigned to the Intoxicated Driver Testing Unit, offered to administer a breath analysis test using the Intoxilyzer 5000 to Respondent. He stated that he read a series of questions to Respondent regarding his arrest and whether he would submit to the breath test but Respondent refused. W. Wilson informed Respondent that if he refused the test, he would be suspended, his driver's license would be revoked and that his refusal could be used against him at trial resulting

from his arrest W Wilson stated that Respondent against refused to take the breath test.

W Wilson then offered Respondent the opportunity to take the Physical Coordination Tests which included a battery of tests including a "walk-and turn test," a "one-legged-stand test," and a "finger-to-nose test" to determine coordination and test for intoxication or impairment Respondent also refused to take these tests W Wilson testified that Respondent never claimed to have any injuries or physical conditions to justify his refusal to take the tests W Wilson testified that he completed the Arresting Officer's Report required for every DWI arrest (DX 4) He noted that the machine was ready, that the breath test was offered to Respondent, Respondent's response, his [W Wilson's] information, where the test was offered, the time and Respondent's pedigree information He also noted that this process at the IDTU room was videotaped

Respondent argued that he was advised by senior union personnel at the 28 Precinct not to submit to the breath testing By refusing to be tested, Respondent prevented the Department from actually determining whether he was intoxicated or impaired The Vehicle and Traffic Law mandates that where a driver refuses to submit to chemical testing to detect the presence of alcohol, the driver's license to operate a motor vehicle within the State of New York shall be "immediately suspended and subsequently revoked " Vehicle and Traffic Law Section 1194 (b) (1) The Patrol Guide specifically states that "(a)ll uniformed members of this Department are required to have a valid driver's license as a condition of employment" and where a member's driver's license has been suspended, that member is not permitted to operate Department vehicles (Patrol Guide Section 203-03) Because police officers must themselves follow the laws they are sworn to uphold and because members of this Department are required to maintain a

valid driver's license, the Respondent was on notice that his refusal to be tested constituted misconduct

Respondent is found Guilty of Specification No 3

Specification No 6

Respondent stands charged herein with failing to carry his shield at all times, as required while off-duty on the same date, time and location indicated in Specification No

1 Respondent is found Guilty as charged Respondent testified at this proceeding that when he was arrested on the incident date, he did not have his Department shield on his person He explained that he left his shield on his uniform in his locker which was his normal practice Patrol Guide 204-15 paragraph 3 states in no uncertain terms

Carry shield and **IDENTIFICATION CARD** at all times when not in uniform and present both when necessary to establish identification

Accordingly, I find Respondent Guilty of Specification No 6

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined, see *Matter of Pell v Board of Education*, 34 N Y 2d 222 (1974)

Respondent was appointed to the Department on July 1, 2003 Information from his personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum Respondent has been found Guilty of operating a motor vehicle while his ability was impaired by an intoxicant, namely alcohol, refusing to submit to a Breathalyzer and coordination examination. consuming

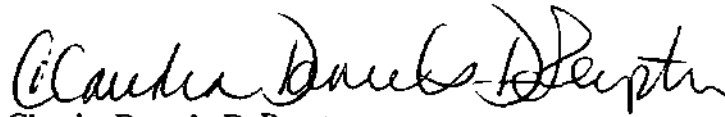
an intoxicant to the extent that he was unfit for duty, being armed with a firearm while unfit for duty, and failing to carry his shield. The Assistant Department Advocate asked for a penalty of 30 days time already served on suspension, ten vacation days, one-year dismissal probation along with ordered breath testing and cooperation with counseling and I agree.

In previous cases before this tribunal where members of the service who had no prior disciplinary records either pleaded Guilty or have been found Guilty of operating a vehicle while impaired by alcohol, being unfit for duty and refusing to submit to chemical testing to detect the presence of alcohol, the penalty imposed has consistently been the forfeiture of a substantial number of vacation days along with one-year dismissal probation. For example, in Disciplinary Case No. 74742/99, an 18-year detective, with no prior disciplinary record forfeited 40 vacation days, with credit for 11 days already spent on suspension, and received one-year dismissal probation for operating a Department car while impaired by alcohol, being unfit for duty, being armed while unfit for duty, and wrongfully refusing to submit to chemical testing to detect the presence of alcohol in his system.

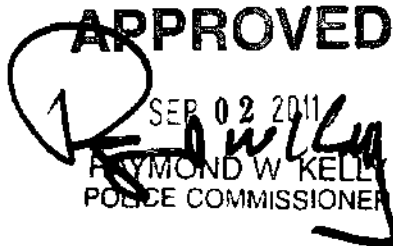
I therefore recommend that Respondent be DISMISSED from the New York City Police Department but that his dismissal be held in abeyance for a period of one year pursuant to section 14-115 (d) of the Administrative Code, during which time he remains on the force at the Police Commissioner's discretion and may be terminated at any time without further hearings.

I further recommend that he forfeit the 30 days he served on pretrial suspension, plus an additional 10 vacation days, for a total of 40 penalty days

Respectfully submitted,



Claudia Daniels-DePeyster
Assistant Deputy Commissioner – Trials

APPROVED
1 SEP 02 2011

RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From Assistant Deputy Commissioner – Trials
To Police Commissioner
Subject CONFIDENTIAL MEMORANDUM
POLICE OFFICER JASON SOTO
TAX REGISTRY NO 933377
DISCIPLINARY CASE NO 82355/06

In 2007, 2008 and 2009, Respondent received an overall rating of 4.0 “Highly Competent” in his last three annual performance evaluations. He has not received any medals in his career to date.

[REDACTED]

Respondent has no prior, formal disciplinary record.

For your consideration


Claudia Daniels-DePeyster
Assistant Deputy Commissioner – Trials